

IN THE LOCAL COURT AT DARWIN

Proceeding: R v Callum James Byrne.

Court reference: INVALID-LC-2017-CJB.

Date: 3 April 2017. Judicial officer: Magistrate Elin Marr, fictional.

Appearances: prosecutor and defence solicitor, names suppressed in transcription.

Matter: aggravated assault, Criminal Code s188.

Transcript type: sentencing remarks, synthetic text, not an actual court record.

MAGISTRATE: Mr Byrne, you have pleaded guilty to the charge concerning the events of 12 November last year. I sentence you on the facts accepted for that plea. The argument occurred outside a Mitchell Street nightclub after you and the other man had been drinking. There was loud disagreement near the entrance. You then struck him with your fist.

The victim was an adult man aged 23 and suffered a broken nose from the defendant's punch.

The medical material records pain, swelling and the need for follow-up treatment. There is no finding here of lasting disability, but a broken nose is a substantial injury. This is not a case of harmless pushing in a queue. The other man's involvement in an argument does not entitle you to answer it with that violence. No child was the victim of the offence before this court.

You were twenty-two when you committed it and are twenty-two today. You had work and a place to live. There is no prior adult criminal record put before me. Counsel has explained the youth diversion in New Zealand. I do not treat that as an adult conviction and I do not sentence you twice for a matter already dealt with there.

The plea was entered at the first practical opportunity after the case materials were obtained. It has spared the victim the burden of giving evidence about the punch and its immediate consequences. That is a factor in your favour. It does not reduce the actual harm he experienced.

I will address the personal material and the appropriate sentence in the following remarks. Please remain standing while the orders are pronounced. The court officer will explain the written conditions to you after this hearing.

MAGISTRATE: Alcohol features prominently in the accepted account. You drank throughout the evening and were affected when you struck the victim. You remember parts of the argument imperfectly. I accept intoxication as part of the circumstances, but it provides no excuse. You chose to continue drinking and you remain responsible for the punch.

Counsel has given me your written apology, the evidence of compensation arranged through the proceeding and a letter from your work supervisor. The apology acknowledges the injury rather than accusing the victim of causing the assault. I accept that your remorse is real. It has practical expression in the plea and the compensation, not merely in a wish to avoid imprisonment.

You are employed in a yard and stores role and have stable accommodation. The employer has kept you working while the matter was pending. You have spoken about avoiding heavy drinking and late nightclub outings. Those are sensible measures. I cannot know from a letter what you will do with them when you are angry next time. The opportunity for rehabilitation is nevertheless a substantial consideration for a person of your age without a prior adult conviction.

I have considered personal deterrence and general deterrence. People who go out in the city are entitled to go home without a facial fracture. Others must understand that an angry exchange outside licensed premises can lead to a sentence of imprisonment when violence follows. A fine alone would not mark the gravity of this conduct sufficiently.

The absence of earlier adult offending and the early plea weigh against immediate custody in this case. I will impose a term of imprisonment but suspend it wholly on the conditions I am about to specify. That is a sentence of imprisonment, not a finding that the matter was too minor to punish. You should be clear about that distinction.

The victim's age, the single punch and the injury are facts of this offence. These remarks contain no decision about any later job involving children, and no prediction that compliance with one order proves good conduct in every future setting. The sentence is directed to the offence proved today.

MAGISTRATE: You are convicted of aggravated assault and the conviction is recorded. I sentence you to eight months imprisonment, wholly suspended. You are to enter a twelve-month good behaviour bond commencing today. The written order identifies the reporting and compliance requirements explained by the court officer. You must understand that the suspended sentence is a serious consequence hanging over you during the operative period.

The defendant received eight months imprisonment wholly suspended and a twelve-month good behaviour bond on 3 April 2017.

I have arrived at that term after allowing for the early guilty plea. The plea and the personal matters I have described justify the suspension; the injury and the deliberate use of force justify the custodial term. I do not order immediate detention today. The distinction must be reflected correctly if you later describe the outcome on a form asking about convictions.

You must maintain good behaviour and comply with the bond. The court office will record the undertaking and your contact details. If your contact arrangements change, you must follow the directions given with the order. You cannot simply ignore a notice because you are working or because reading about the offence is unpleasant. Ask the office or your solicitor if you do not understand a condition.

Defence counsel has indicated that you can continue in employment. That is appropriate. It is also a practical way to meet ordinary responsibilities and reduce the idle, heavy-drinking social pattern described in the materials. Employment is a favourable circumstance, not an exemption from the consequences of any further offence.

The compensation arrangement noted earlier remains recorded in the court file. This transcript does not reproduce banking instructions or a victim address. Those details are not needed to understand the sentence and are not supplied in this synthetic copy.

The court's sentence is now pronounced. Please speak with the court officer before you leave. Counsel should ensure that the undertaking is explained in words Mr Byrne understands. The orders are to be entered against the name on this proceeding, Callum James Byrne, with the birth date already established in the court record.

COURT OFFICER: Mr Byrne, the orders pronounced have been reduced to writing. Your solicitor may read them with you. The sentence is wholly suspended and the good behaviour bond is for twelve months from today's date. The recorded conviction remains a conviction. The file notes your acknowledgment of the written order before leaving the counter.

DEFENDANT: Yes, I understand.

MAGISTRATE: I also want you to understand what remorse requires after the hearing. It requires more than being quiet in court. When disagreement occurs, you must make a different choice before using force. Avoiding intoxication and changing where you socialise are useful beginnings. They will be judged by what you do.

The adult victim is not in court today. The prosecution has tendered the relevant injury material and the accepted facts. I have not drawn an adverse inference from his absence. Nor have I heard evidence of some additional, uncharged assault to aggravate this sentence. The sentence is for the charge to which you pleaded guilty on the accepted account.

Proceeding concluded. Court administration endorsement: orders entered 3 April 2017; undertaking signed at counter; copy issued to defence; prosecution copy recorded. Transcript prepared as a fictional reconstruction for this test. No actual hearing, magistrate, solicitor, prosecutor, victim or clerk is represented by these invented details.

Transcription control notes: pages numbered consecutively; interruptions omitted only where they concern routine microphone checks and spelling of a fictional reference. No substantive judicial finding has been changed within this exercise. Later sentence-compliance information, if required, is in the separate completion letter. This transcript does not include events in 2019 or 2021, which had not occurred at the time of sentencing.

Candidate name on transcript: Byrne, Callum James; date of birth 17 August 1994. Court identifier: INVALID-LC-2017-CJB. Registry contact: court.transcripts@example.invalid; telephone 08 7000 0xxx. The contact channel cannot retrieve a real proceeding. End of synthetic sentencing transcription. The written court-result table in the national history should be compared with these remarks if a reader needs the distinction between imprisonment imposed and immediate imprisonment served.